

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-12

DOLLAR GENERAL LOGISTICS, LLC

v.

YANG MING MARINE TRANSPORT CORP.

JOINT MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainant Dollar General Logistics, LLC (“Complainant” or “Dollar General”), and Respondent Yang Ming Marine Transport Corp. (“Respondent” or “Yang Ming”) (Dollar General, collectively with Yang Ming, the “Parties”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Motion to Extend Deadlines (“Motion”) and respectfully request a 90-day extension of the remaining deadlines set forth in the Presiding Officer’s August 12, 2025 Scheduling Order:

I. The Current Schedule

1. On August 12, 2025, the Presiding Officer entered a Scheduling Order with the following deadlines relevant to this Motion:

October 31, 2025	Substantial completion of document (including ESI) production
October 31, 2025	Begin depositions of fact witnesses
December 5, 2025	Complete depositions of fact witnesses
December 5, 2025	Last day to serve interrogatories, requests for admission, requests for production of documents
December 12, 2025	Joint status report regarding status of discovery including how many expert reports and depositions, if any, are planned
January 5, 2026	Disclosure of initial expert reports, if any
January 26, 2026	Disclosure of rebuttal expert reports, if any
February 20, 2026	Complete expert depositions

February 20, 2026 Complete discovery

II. Good Cause Exists to Extend the Current Deadlines

A. Large Discovery Volumes Contribute to the Need for Extended Timeframe

1. As to the status of discovery, the Parties continue to work diligently and cooperatively in order to meet the Scheduling Order's October 31, 2025 deadline for substantial completion of document (including ESI) production. As discussed in the Parties' previous joint status reports, dated August 8 and September 26, 2025, the Parties have already exchanged initial disclosures and initial requests for production and interrogatories as well as objections and initial responses thereto. There are at present no outstanding issues therefrom necessitating the Presiding Officer's intervention.

2. Consistent with Paragraph 31 of the Presiding Officer's July 9, 2025 Initial Order in this case, the Parties have agreed to a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. A copy of such proposed order was filed with the Commission on September 15, 2025, which the Presiding Officer entered, as modified (the "Protective Order"), by order dated September 16, 2025. Moreover, following good faith discussions, the Parties have also agreed to a protocol regarding electronically stored information to govern the identification, collection, and exchange of potentially relevant information in this action (the "ESI Protocol"). Following agreement to the Protective Order and ESI Protocol, the Parties are currently in the process of identifying and collecting electronically stored information from likely relevant custodians.

3. As a part of its document and data collection process, Complainant has collected more than 31,000 documents loaded after deduplication from 9 custodians as well as network share drives and other sources of data. With the documents now accessible, counsel must manually

review them for responsiveness, confidentiality, and privilege before production—a process that necessarily requires substantial time and care. Complainant has been working closely with its e-discovery partner to expedite this process and has made significant progress.

4. Yang Ming has on its part collected over 20,000 deduplicated documents and overall network share drives, individual laptop and phone data collection from nine custodians located in several States of the US and in foreign countries is underway, but as noted above the review process is extremely time consuming. Yang Ming is working with its e-discovery partner to streamline the process as much as possible and it is believed that will increasingly assist going forward. However, there is no question the entire process is time and effort intensive.

5. The Parties have been diligent in managing and working towards producing documents. As previously reported, the Parties have conferred to clarify and narrow discovery requests in order to achieve focused responses and productions. The Parties have also endeavored to avoid “data dumps,” i.e., the production of documents which contain search terms from the ESI Protocol, but which are not substantively responsive. These efforts have involved greater scrutiny during the review process and accordingly require a greater expenditure of time.

6. As a part of the ongoing review and rolling productions process, Complainant and Respondent are working to review the substantial amount of remaining documents that were pulled in by each Party’s ESI Protocol’s terms, to isolate potentially overinclusive terms for further discussion, to remove non-responsive documents and data, and to continue to make rolling productions. Given the substantial volume of documents and the need for thorough review, an extension of time is necessary to ensure that both parties can complete their discovery obligations effectively.

B. The Large Number of Depositions to Be Taken Makes Completion under the Current Schedule Impossible

7. The parties remain respectful of the deadlines set forth in the Scheduling Order, and to date have worked together diligently and collaboratively to structure (and agree on, to the extent possible at this early stage) both the overall scope and the particulars of fact discovery in this action. However, the complexity and size of this matter have made it clear to the Parties that they will not be able to complete written discovery within the present deadlines, and consequently would not be able to adequately take depositions based upon a full factual record and further would not be able to present their claims and defenses adequately in their respective briefs or in any eventual trial in this action.

8. The Parties have served written discovery requests, including interrogatories and requests for production, and have provided objections and responses to such requests. The Parties have worked to limit the need for any discovery-related disputes to be brought before the Presiding Officer.

9. The Parties are aware of the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this joint Motion, the Parties here have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

10. The Parties will endeavor to prevent any further requests for additional time, but limited extensions may become necessary if, for example, issues arise related to the collection and production of documents located abroad or in the custody of non-parties, the need for significant

Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available, but in the interest of full transparency, the parties wish to note such possible issues for the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by Complainant against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where Complainant has raised similar legal claims as in the present action, the parties there took over 30 total depositions.

11. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

12. As shown above, the Parties anticipate a significantly higher volume of documents than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. (*See id.* Docs. 17–18.) Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where the parties there took over 30 depositions. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *OOCL* proceeding.

III. Conclusion

13. Given that the parties are still working diligently to review and produce documents, the Parties respectfully submit that an extension of the remaining deadlines in August 12, 2025 Scheduling Order is necessary to allow the Parties a fair opportunity to produce documents, depose each other's respective fact witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

14. The Parties therefore jointly request the following amended schedule (moved 90 days from the original deadlines in the Scheduling Order, accounting for weekends and holidays):

January 29, 2026	Substantial completion of document (including ESI) production
January 29, 2026	Begin depositions of fact witnesses
March 5, 2026	Complete depositions of fact witnesses
March 12, 2026	Last day to serve interrogatories, requests for admission, requests for production of documents
April 6, 2026	Joint status report regarding status of discovery including how many expert reports and depositions, if any, are planned
April 27, 2026	Disclosure of initial expert reports, if any
May 21, 2026	Disclosure of rebuttal expert reports, if any
May 21, 2026	Complete expert depositions
May 21, 2026	Complete discovery

15. Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: October 24, 2025

Respectfully submitted,

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